

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**NOTICE OF PROCEDURAL MISCHARACTERIZATION AND LACK OF
COURTESY BY PLAINTIFFS' COUNSEL**

COMES NOW Defendant, Marc Moszkowski, *pro se*, and hereby places on the record a procedural concern and professional observation relating to the conduct of Plaintiffs' counsel, Mr. Braden K. Ball, Jr., in connection with the Court's directive issued via email dated June 26, 2025. In support, Defendant states:

- 1.** The Judicial Assistant to Judge Shackelford clearly outlined a sequence to be followed in finalizing the proposed judgment:

(a) Mr. Ball was to prepare the proposed Final Judgment including findings of fact and conclusions of law,

(b) send it to Defendant for review,

(c) and then to the Court for consideration.

Defendant was to have ten (10) days to submit a redlined version if objections were to be made.

2. On July 1, 2025, Mr. Ball transmitted a copy of his proposed Final Judgment to Defendant via email, but in the same message stated his intention to submit it to the Court “by close of business tomorrow,” implying that Defendant had only one day to respond or object.
3. This assertion directly undermines the ten-day window provided by the Court and mischaracterizes the process as one subject to Mr. Ball’s timeline, rather than that of the Court.
4. The sequence provided by the Court necessarily implies that the proposed judgment be submitted for Court consideration **only after** Defendant’s opportunity to submit a redlined version within ten days has passed—or at the very least, not in a manner that cuts short that review period.
5. Furthermore, in the same communication, Mr. Ball addressed Defendant as “Ms. Moszkowski.” While Defendant would welcome such a form of address if gender so warranted, its use in this

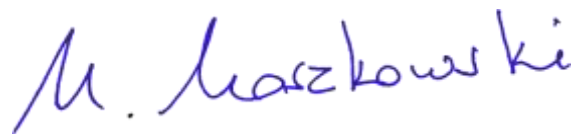
instance—despite years of litigation, filings, and Court documents correctly identifying Defendant—simply underscores Mr. Ball’s continued disregard for accuracy and attention to fact.

6. This lapse, in tandem with the procedural overreach described above, exemplifies a pattern of imprecision and narrative framing that seeks to override both procedural fairness and the record itself.

WHEREFORE, Defendant submits this Notice to preserve the integrity of the record, to correct the procedural timeline, and to formally request that Plaintiffs’ counsel adhere both to the Court’s instructions and to ordinary standards of professional address.

Respectfully submitted this 2nd day of July, 2025.

Marc Moszkowski, Pro Se
Email: m.moszkowski@deepgulf.net
Le Verdos
83300 Châteaudouble, France



CERTIFICATE OF SERVICE

I hereby certify that, on this 2nd day of July, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

A handwritten signature in blue ink, reading "M. Maczkowski". The signature is written in a cursive, flowing style.